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Inventory and estimate property value

To help decide whether or how property can be transferred, you will need to:

- Make a list of everything the person owned (inventory)
- Identify what type of property each item is
- Find out how the property is owned
- Estimate each item's value and then get the total value

Follow the steps below to complete each task. Once you've completed all the tasks, you will use the information to figure out what type of process you can or must use to transfer property.

How to inventory and estimate the value of items

1

Make a list of everything the person owns

They may have papers or records that show what they own. For example:

- Title to a car
- Deed to any real estate (like a house or land the person owns)
- Bank or retirement account statements
- Life insurance

Make a list of the items, for example, each bank or retirement account, or any land or home they own.

List any items of high value individually. For example, a rare baseball card or comic book collection, or an expensive watch or piece of jewelry.

For personal and household items, like tools, clothes, furniture, or kitchen items, you generally do not need to list every item. You can write down the category of items and estimate the total value.

2

Identify the type of property

For each item, write down a brief description of what it is and what type of property it is. In general, you want to know if something is considered real or personal property.

Real property

Land and buildings. It also includes real estate leases of at least a 10-year term or with an option to buy. If you are not sure if something qualifies as real property, talk to a lawyer.

Personal property

All property that is not real property. It can be things you can touch, like a car, jewelry, or furniture. Or, it can be something that says you have a right to be paid (usually this is in writing). For example, stock, bond, or deed of trust. Cash is personal property.

3

Find out how property is owned

Review the documents you found that say who or how someone owns something. They may also say what happens to the property after the owner dies. Look to see if more than 1 person is listed as the owner, if anyone is listed as a beneficiary, and how the property is owned. For example, property could be owned separately, jointly with another owner, or as community property.

Examples of terms to look for on the records:

BANK ACCOUNT

- **Joint account:** An account owned by more than one person. Both people are listed on the account.
- **Right of survivorship:** Often joint accounts have a right of survivorship. This means the account goes to the surviving account holder.
- **Beneficiary:** Most banks let an account holder list a beneficiary. These are sometimes called payable or transferable on death accounts.

REAL ESTATE DEED

- **Transferable on Death (TOD) Deed:**
- **Joint tenancy:** The property is owned in equal shares by the people listed. If one dies, the property passes to the other.
- **Sole and separate property:** The property is owned by only one person in a marriage or domestic partnership.
- **Community property:** The property is owned by the married couple or domestic partners.
- **In a trust's name:** The property is owned by a trust, not the individual.

Deeds are public records and are available at the County Recorder's Office in the county where the property is located. Bank accounts are private and a personal representative must be appointed to gain access to those records. However, sometimes bank statements are found in the person's items at home.



If the person was married or in a domestic partnership when they passed, even if the surviving spouse or domestic partner is not listed as an owner, they may still own part of the property. It will depend on whether the property is community property (from the marriage), one person's separate property, or both.



Estimate the value of each item

The value is your best estimate of the fair market value of the item when the person passed away.

- You do not need to have anything appraised. If you go to court later, you may need to have a formal appraisal. At this point, you can just give an estimate.
- If the person did not own the entire property, write down the value of the person's share of the property.
- If they owed any money, write that down along with how much they owed. For example, if they owned a car, but owed money on it then write down the total estimate of the value of the car (what it would sell for) and how much they owed on it.



Review your list

Check that your list is complete. For each item, do you have:

- A brief description, including if its real or personal property
- How the person owned the property (that is, separately, in joint tenancy, or as community property, etc.)
- The value of the property as of the date of death, including what portion of the property they owned and if they owe money on it

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